

## PET, SERVICE, OR ASSISTIVE ANIMAL ADDENDUM

Addendum Date: \_\_\_\_\_ ["Management"] as Owner of \_\_\_\_\_  
as Agent for the Owner of \_\_\_\_\_

["Property Name"] enters into this Pet, Service, or Assistive Animal Addendum to the Rental Contract ["the Lease"] with

\_\_\_\_\_  
["Residents"], pertaining to House / Unit No. \_\_\_\_\_ located at \_\_\_\_\_  
[Address]. This addendum is part of the Rental Contract dated \_\_\_\_\_ ["Date of Lease"].

1. **Resident's Disclosure of Animal Occupancy.** Resident discloses, represents, and warrants that he or she HAS does NOT have any pets, service, or assistive animals ("Animals") at the time of taking occupancy of the house.

If Resident has a pet, service, or assistive animal at the time of taking occupancy of the house, then information describing the animals is listed below.

If Resident subsequently acquires, obtains, or brings an animal, a new animal not listed below, or a replacement animal to live or occupy the house after taking occupancy, then Resident agrees to sign, update, or modify this Addendum to provide additional information about the animal and obtain permission to have such animal in the house.

Resident acknowledges and agrees that he or she has special obligations to the animal, other residents, and Management employees when allowed to have an animal in the house.

No Resident is permitted to have an animal occupying the house or the property without disclosing the animal and having the express written permission and approval of Management under a signed Addendum. The Resident is not allowed to add or substitute an animal without prior written consent of Management.

2. **Addendum Is Part of Rental Contract.** This Addendum is part of the above Rental Contract ["the Lease"] and a violation of the Addendum is a serious lease violation, breach, or default of the Rental Contract. If the Addendum was signed after the Resident took occupancy or signed the lease, then this Addendum shall modify and be incorporated into the above described lease.

3. **Description of Large Animals, Dogs, and Cats.** The following animals will be living in or occupying the house:

**A. Description of 1st Dog, Cat or Animal:**

Animal's Name: \_\_\_\_\_  
Kind of animal (ex. - Dog, Cat): \_\_\_\_\_  
Breed (ex. - Labrador Retriever): \_\_\_\_\_  
Age of animal: \_\_\_\_\_  
Weight of animal: \_\_\_\_\_  
Color of animal: \_\_\_\_\_  
Veterinarian: \_\_\_\_\_

**B. Description of 2nd Dog, Cat or Animal:**

Animal's Name: \_\_\_\_\_  
Kind of animal (ex. - Dog, Cat): \_\_\_\_\_  
Breed (ex. - Labrador Retriever): \_\_\_\_\_  
Age of animal: \_\_\_\_\_  
Weight of animal: \_\_\_\_\_  
Color of animal: \_\_\_\_\_  
Veterinarian: \_\_\_\_\_

**C. Description of Other Animals:**

Kind of animal (ex. - Fish, Bird): \_\_\_\_\_  
Breed (ex. - Goldfish, Parakeet): \_\_\_\_\_  
Number of Animals: \_\_\_\_\_

4. **Resident's Disclosures, Representations, and Warranty that the Animal is Safe and Poses No Threat, Risk, or Harm.** Resident represents and warrants that the animals described above: are suited for living in a residential setting and do not pose a danger or threat of any kind to any person, their property, or another animal; and have never before bitten, scratched, attacked, damaged or injured another person, personal property, or other animals. Resident represents and warrants that he or she has never had a claim or lawsuit made or filed against them or any other person or business for an injury or damage caused by or related to the animals Resident will have living in the house or present on the property. Resident represents that the animal has had all required immunizations and shots, including, but not limited to Rabies, Parvo, Distemper, and other animal diseases and that Resident will update such immunizations and shots on an annual or other regular basis. Resident agrees and understands that Management's approval of an animal to occupy the house or to be present on the property is conditional upon Resident's truthful and accurate disclosure and representations and compliance with all conditions in the lease, this addendum, and the property rules and regulations. Management would not have approved the animal for occupancy but for Resident's express warranty and representations.

5. **Equal Housing Opportunity Policy.** The owner and Management provide equal housing opportunity for qualified applicants and do not discriminate on the basis of race, color, religion, sex, national origin, familial status, disability, or any other legally recognized status under applicable law. It is the owner's and Management's policy to provide reasonable accommodations in the property's operational policies and procedures and to permit the Resident to make reasonable modifications that are necessary for the Resident and related to the disability for persons with a demonstrated disability. The Resident must request and obtain permission from the owner or management for any accommodation or modification prior to implementing the same. In general, the cost or expense of physical modifications to the house or property is the responsibility of the Resident, unless the applicable law requires the owner or Management to absorb or be responsible for the cost of such modifications. A Resident or occupant with a demonstrated disability is allowed to have an assistance animal to assist with the person's disability. A disabled Resident or occupant is allowed to have an assistance animal which has not been trained as a service animal unless the animal has a history of dangerous, vicious, or unsafe behavior. If the nature of the disability is not obvious or apparent or the manner in which the animal will provide assistance is not clear, Management has the right to request additional information regarding how the animal will assist with the resident's disability. The Resident does not have an absolute right to the specific accommodation or modification requested, and Management has the right to offer a substitute or alternate accommodation or modification with conditions that will provide adequate assurance for the safety, health, and well being of other Residents, occupants, social guests, invitees, and Management employees. No Additional Rent, Non-refundable Fee, or Animal Security Deposit is required from Residents or occupants who are disabled and have an approved service or assistance animal; however, the Resident is responsible for any and all damages and cleaning fees exceeding normal wear and tear caused by such animal.

6. **Additional Rent, Non-Refundable Fees, or Security Deposits for Animals.** Resident shall pay the following rent, non-refundable fees, or security deposits in connection with having an animal occupying the house. All such rent, fees, and deposits are in addition to those specified in the Rental Contract or other addenda; however, a disabled Resident or occupant is not required to pay any such charges, fees, or deposits for service or assist animals. None of the following rent, fees, or security deposits are applicable to disabled persons with approved service or assistive animals.

**Additional Rent:** Resident shall pay \$ \_\_\_\_\_ per month on the first day of each month as additional rent for the animal.

**Non-refundable Fee:** Resident shall pay \$ \_\_\_\_\_ as a one-time, non-refundable fee for occupancy of the animal in the house. Payment of such fee is not a security deposit, is not refundable, and does not constitute liquidated damages. Resident shall remain liable for all damages exceeding normal wear and tear to the house or property.

**Animal Security Deposit:** Resident shall pay \$ \_\_\_\_\_ as a security deposit for fulfillment of all terms and conditions of the Rental Contract and this Addendum. Resident's Animal Security Deposit will either be protected by a surety bond on file with the appropriate court in the jurisdiction in which the property is located or the deposit will be placed in a trust account at \_\_\_\_\_ [Name of Bank where deposit will be located].

The deposit shall be returned to Resident as provided by law; however, Management shall have the right to apply the Animal Security Deposit to any rent, fees, charges, or damages due under the Rental Contract. Management is not limited to applying the Animal Security Deposit only to rent, fees, or damages pertaining to or caused by the animal.

7. **Removal of Animals that Are Distressed, Sick, Abused, Neglected, or Abandoned.** Resident shall not abandon any animal and shall use due care to maintain the health, safety, and welfare of the animal at all times. Management shall have the right to take any and all steps to remove and obtain veterinarian treatment, place the animal in protective care or shelter, or place an animal for adoption if Resident should abuse, neglect, or abandon the animal. Management shall have the right to take any steps to remove any animal that appears to be abandoned, neglected, abused, unattended, unsupervised, or causing injury or damage to any person, the house, the property, or any personal property. Any abandoned animal shall become the property of the owner or Management for placement with a new owner. Management shall have the right to remove from the house and board any animal that is causing excessive noise or other behavior that disturbs the quiet enjoyment of others. Management is authorized to physically pick up and remove the animal without the necessity of filing or pursuing any legal proceeding or remedy in a court of law. The Resident shall be responsible to owner and Management for all costs of care, boarding, placement, and veterinarian treatment of any abused, neglected, or abandoned animal. Resident authorizes Management to enter the house and remove any animal which is abused, neglected, or abandoned and deliver the animal to the county animal control department, Humane Society, a veterinarian, or temporary or permanent foster home, and the owner and Management shall have no liability to the Resident for removal of the animal. Management may, but is not required to, give notice to Resident of removal of the animal.

8. **Insurance and Indemnification.** Resident shall purchase and maintain a renter's insurance policy which provides a minimum of \$100,000 liability insurance for any injuries or damages caused by the animal or caused by Resident's or Resident's occupants, family members, social guests, or invitees failure to supervise, control, or maintain the health, or prevent disease in the animal through proper control, care, supervision, and immunization. Resident shall indemnify, defend, and hold harmless the owner and Management from the claims of any person, business, or governmental agency for any injuries or damages caused by the animal or caused by Resident's or Resident's occupants, family members, social guests, or invitees failure to supervise, control, maintain the health, or prevent disease in the animal through proper care and immunization. The Resident shall be liable for any injuries or damages to third parties caused by the animal or the failure to supervise, control, or maintain the health, or prevent disease in the animal through proper care and immunization. Resident shall not allow the animal to damage any portion of the house or property and is responsible for paying all such damages immediately upon receipt of an invoice.

9. **Animal Rules and Regulations.** The Resident shall not violate any federal, state, or local law related to ownership or possession of an animal. In addition, Resident shall follow and obey the following rules and regulations.

- A. Resident shall control and prevent the animal from excessive barking, mewing, howling, noise, or other behavior which disrupts the quiet enjoyment of others or disrupts Management in carrying out its day-to-day business of managing the property. Resident shall not allow or permit the animal to frighten, assault, injure, bite, or attack any other person or animal.
- B. Resident shall properly feed, water, clean, care, supervise, and provide veterinarian care for their animal at all times.
- C. Resident may only have and keep a pet or animal that is considered a common and domesticated household animal or pet that is suitable for living in a residential setting. Examples of such animals are dogs, cats, small aquarium size fish, and small birds. Animals that are considered to be "domesticated" (such as, but not limited to, horses) but are otherwise uncommon household animals or are otherwise unsuited for residential living are prohibited. Wild, exotic, poisonous, endangered, or prohibited species of animals are not allowed. Snakes, spiders, lizards, reptiles, and rodents are prohibited. Resident is prohibited from owning or possessing any animal of which ownership or possession is illegal under any federal, state, or local law.
- D. Resident shall not leave the animal, dog, or cat alone, unattended, or unsupervised for more than 12 hours without water, food, and outdoor access for defecating. Resident shall not leave any animal unattended for an unreasonable period of time if the animal's age, medical condition, or health requires attention and care more frequently than every 12 hours.
- E. Resident shall not crate, cage, or keep an unattended animal, dog, or cat in a cage or crate for more than 8 hours at a time except for purposes of house training. Resident shall not crate any animal for more than 12 hours at a time without proper supervision and allowing a reasonable time out of the crate for purposes of defecation and exercise. All dogs shall be properly trained to defecate outside the house in approved areas of the property. All cats must have a litter box that is regularly cleaned. Resident shall prevent the animal from defecating on floors, walls, doors, or the fixtures of the house and keep the premises in clean, sanitary, and hygienic condition.
- F. Resident must maintain all dogs and cats on a leash and shall follow all leash laws when the animal is outside of the house or outside of an approved and enclosed animal park, if any, specifically designated for the animals. The Resident shall maintain control over his or her animal at all times to prevent any loss, damage, or injury to the animal, to other persons, to the property, or to other property. The leash used to control the animal shall not be longer than 8 feet or such other length as specified by the applicable leash law.
- G. All animals shall be properly licensed and identified with their animal's name and phone number on a collar or identification tags which are readily visible with the owner's name and phone number, regardless of whether the animal has an imbedded identification chip which can be digitally read. All dogs and cats shall have a collar or harness for attachment to a leash while outside of the house or while on the property.
- H. Resident shall clean, remove, and properly dispose of all animal feces in a clean and sanitary manner. Resident shall not allow animal excrement or urine to damage the house, the property, landscaping, flowers, shrubs, grass, walkways, driveways, porches, decks, or patios.
- I. Resident shall use any designated areas for walking and defecating if the property has specifically designated certain areas for that purpose. If no such areas are designated, then the Resident shall only use natural, un-landscaped, or wooded areas or buffers surrounding the property for defecation.
- J. Resident shall not tie or tether any animal to a patio, porch, deck, building, fence, stake, tree, stairway, shrub, or other portion of the property.
- K. Animals, other than disability service or assist animals, are not permitted inside any office or business area of the property or in any recreational facilities or amenities associated with the property.
- L. Other: \_\_\_\_\_

10. **Violation of this Addendum.** Any violation of this Addendum is a material breach of the lease agreement, and Management at its sole discretion may require Resident to remove the animal from the premises or immediately terminate the Rental Contract or Resident's right of possession and occupancy of the house as provided in the lease.

**Signature of Parties:**

**Owner or Management**

\_\_\_\_\_  
Name of Owner or Management Company  
As Landlord

By: \_\_\_\_\_  
Signature of Management Representative

As: \_\_\_\_\_ (Title)

**Residents**

\_\_\_\_\_  
Printed Name of Resident: \_\_\_\_\_ (Resident)

\_\_\_\_\_  
Printed Name of Resident: \_\_\_\_\_ (Resident)

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Printed Name of Resident: \_\_\_\_\_ (Resident)

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Printed Name of Resident: \_\_\_\_\_ (Resident)

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Printed Name of Resident: \_\_\_\_\_ (Resident)